



**BHCIP PROJECT SPECIFIC  
OWNER'S ADVISOR CONSULTING SERVICES AGREEMENT  
GOOD SAMARITAN HOSPITALS'  
KINGS COUNTY BHCIP BOND ROUND 1**

This Consulting Services Agreement (the "Agreement") is made and entered into as of July 1, 2025 (the "Effective Date"), by and between BHSME, LLC, a California limited liability company with offices at 302 Washington Street, Suite #211, San Diego, CA 92103 ("Consultant"), and Kings County Behavioral Health and Good Samaritan Hospital ("Client").

**1. PURPOSE**

Client hereby retains Consultant to provide Owner's Advisory services for the BHCIP Bond Round 1 project located in Kings County, CA. Consultant shall provide BHCIP-focused strategic real estate planning, development oversight, compliance coordination, and team leadership in accordance with the Scope of Work and Fee Schedule attached as Exhibit A.

**2. TERM**

This Agreement shall commence on July 1, 2025 and shall continue through December 31, 2026, unless extended or terminated earlier as set forth herein. The term may be extended through December 31, 2031 upon mutual written or email confirmation.

**3. SCOPE OF SERVICES**

Consultant shall perform strategic BHCIP-centric real estate consulting services and receive payments as set forth in Exhibit A, including BHCIP project strategy, BHCIP coordination, DHCS and AHP strategic alignment, pre-construction readiness, BHCIP risk mitigation.

**4. COMPENSATION AND FEE SCHEDULE**

Client shall pay Consultant as set forth in Exhibit A, a minimum monthly flat rate of \$8,000, billed in advance. No services shall be performed until payment is received. Tier 3 compensation is anticipated for the first 3 months. Additional hours in excess of Tier 3 maximum of 25 hours per month shall be billed at \$250/hour, subject to Client's approval.

**5. EXPENSES**

Client agrees to reimburse Consultant for travel and lodging expenses incurred while performing on-site services, including a \$500/day per diem for in-person client meetings, billed separately in arrears with receipts for lodging and travel.

**6. TERMINATION**

Either party may terminate this Agreement with fourteen (14) days' written notice. All earned and invoiced fees shall be due and payable, and no fees shall be refunded.

## 7. CONFIDENTIALITY

Consultant agrees to maintain the confidentiality of all non-public information received from the Client. This clause shall survive termination of the Agreement.

## 8. INDEPENDENT CONTRACTOR

Consultant is engaged as an independent contractor. Nothing herein shall be construed to create an employer-employee relationship, joint venture, or partnership.

## 9. INDEMNIFICATION

Each party shall indemnify and hold harmless the other from any and all claims, liabilities, losses, or expenses arising from the performance of this Agreement, except to the extent caused by the gross negligence or willful misconduct of the indemnified party. Client agrees to indemnify, defend, and hold harmless Consultant, its officers, directors, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to:

- (i) Client's breach of this Agreement;
- (ii) acts or omissions of Client or its representatives; or
- (iii) any third-party claims related to Client's use of Consultant's services or deliverables, except to the extent arising from Consultant's gross negligence or willful misconduct.

## 10. LIMITATION OF LIABILITY

In no event shall either party be liable to the other for any consequential, indirect, or punitive damages arising from this Agreement.

## 11. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of California.

## 12. ENTIRE AGREEMENT

This Agreement, including Exhibit A, constitutes the entire understanding between the parties with respect to the subject matter hereof, BHSME contract #007, superseding all prior agreements, oral or written.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

BHSME, LLC

By: Brian Jones

Name: Brian Jones

Title: CEO

Date: 7/2/2025

Good Samaritan Hospital

By: \_\_\_\_\_

Name: Minty Dillon

Title: \_\_\_\_\_

Date: \_\_\_\_\_

## EXHIBIT A: SCOPE OF WORK & FEE STRUCTURE

BHSME, LLC shall provide strategic Owner's Advisory services for the Kings County BHCIP Bond Round 1 project, including but not limited to: strategic BHCIP planning, permitting and BHCIP coordination, team integration, compliance with DHCS/AHP requirements, weekly meetings, project timeline development, and BHCIP-centric real estate development oversight from pre-development through construction. All services to be performed over the initial 18-month term (July 1, 2025 – December 31, 2026) with optional extension through 2031 by mutual agreement.

### 1. SCOPE OF WORK

#### A. Key Services:

- Due diligence, site analysis, and strategic development planning
- Development Team RFP oversight and partner selection
- BHCIP DHCS PFA compliance guidance and drawdown planning
- BHCIP Budget, schedule, and scope alignment
- BHCIP Risk management and grant reporting support
- A&E and construction stakeholder strategic coordination
- BHCIP Permitting roadmap and regulatory navigation

#### B. Strategic Focus Areas:

1. BHCIP Funding Agreement (PFA) Compliance & Strategy (Months 1–3)
2. PFA Performance & Execution (Months 1–3)
3. BHCIP Strategic Real Estate Planning (Months 1–9)
4. Team Coordination (Months 1–9)
5. BHCIP Project Oversight & Risk Management (Months 1–12)
6. BHCIP Regulatory Navigation (Months 1–12)
7. BHCIP Grant Integrity & Compliance Protection (Months 1–12)

#### C. Phased Milestone Schedule (estimated ~ best case):

- **Part I:** Months 1–3 – Kickoff, PFA compliance, permitting strategy
- **Part II:** Months 4–6 – Partner selection, A&E procurement, permitting coordination
- **Part III:** Months 7–10 – Draw readiness, construction prep, pre-submission review
- **Part VI:** Months 11–14 – Building Permits Issued, GMAX, Notice to Proceed
- **Part V:** Months 14–18 – Construction, FFE, Close Out, Licensing, Move-in

### 2. FEE STRUCTURE & PAYMENT TERMS

#### A. Base Fee and Tiered Monthly Fees (Base Fee billed in advance):

- Tier 1: BASE FEE: \$8,000/month for up to 16 hours/month (minimum)
- Tier 2: \$10,000/month for up to 20 hours/month (standard use)
- Tier 3: \$12,000/month for up to 25 hours/month (maximum without written consent)

#### B. Overage Hourly Rate, Above Tier 3 Maximum 25 hours/month:

- \$250/hour, not to exceed 10 hours/month, with written consent

#### C. Travel and Expenses:

Client agrees to reimburse Consultant for approved travel expenses including:

- Per diem: \$500/day max
- Lodging: up to \$250/night
- Transportation and airfare as required

#### D. Invoicing & Late Fees:

- Invoices issued monthly in advance, for Tier 1 Base Fee, due within 15 days.
- Additional hours beyond Tier 1 Base Fee will be documented and invoiced in arrears, included within subsequent monthly invoices for services rendered, payable within 15 days.
- 1.5% monthly late fee applied after 60 days